Land Acquisition, Rezoning & Development Checklist

From finding the property to selling entitled land or developing it yourself

Property address: _____

Parcel / APN: _____

Current zoning: _____

Target zoning / use: _____

Jurisdiction (city / county): _____

How to use: Click a box to check it off on screen (or print and check by hand). Fill in the date as you complete each item. Requirements vary by city / county — confirm each step with your local planning department.

PHASE 1 — Find & Screen the Property (Before Making an Offer)

Step 1. Define your strategy & buy box

- ☐ Decide the end goal (e.g., SF to multifamily, subdivide into lots, commercial / mixed-use) Date: _____
- ☐ Set target markets, parcel size range, and max price Date: _____

Step 2. Source deals

- ☐ Search MLS, LoopNet, Crexi, LandWatch Date: _____
- ☐ Review county GIS / assessor maps (oversized lots, parcels near higher-density zoning, long-term owners) Date: _____
- ☐ Run direct mail / calls, tax-delinquent lists, probate & estate leads Date: _____
- ☐ Connect with land-specialist brokers Date: _____

Step 3. Desktop feasibility check

- ☐ Confirm current zoning Date: _____
- ☐ Check the Comprehensive / Future Land Use Plan (does it support your use?) Date: _____
- ☐ Check overlay districts (historic, flood, airport, environmental) Date: _____
- ☐ Verify utilities at the site with capacity (water, sewer, electric) Date: _____
- ☐ Confirm road access & frontage Date: _____
- ☐ Check FEMA floodplain, wetlands (NWI), and topography Date: _____
- ☐ Research recent nearby rezonings (approved / denied) Date: _____
- ☐ Call or meet planning & zoning staff: "Would staff support rezoning to X?" Date: _____

Talk to: City/County Planning & Zoning Department (free informal call or pre-app meeting).

NOTES

PHASE 2 — Tie Up the Property

Step 4. Negotiate a protective contract

- ☐ Hire a real estate attorney (ideally also land use / zoning) Date: _____
- ☐ Long due diligence / feasibility period (60–180 days) Date: _____
- ☐ Zoning / entitlement contingency (close only if rezoning is approved) Date: _____
- ☐ Extension options (paid with additional earnest money if needed) Date: _____
- ☐ Seller cooperation clause to sign zoning applications Date: _____
- ☐ Assignment rights (so you can assign to a developer) Date: _____
- ☐ Consider alternatives: option agreement or JV with the owner Date: _____
- ☐ Contract signed and earnest money deposited Date: _____

Hire: Real estate attorney.

NOTES

PHASE 3 — Due Diligence

Step 5. Order reports

- ☐ Land surveyor — boundary / ALTA and topographic survey Date: _____
- ☐ Title company — title commitment, easements, deed restrictions, HOA covenants Date: _____
- ☐ Environmental consultant — Phase I ESA (Phase II if needed), wetlands delineation Date: _____
- ☐ Geotechnical engineer — soil testing Date: _____
- ☐ Civil engineer — utility capacity, stormwater, site layout, yield study Date: _____
- ☐ Traffic engineer — traffic impact study (if required) Date: _____
- ☐ Arborist — tree survey (if trees are protected) Date: _____

If there is an existing structure

- ☐ Asbestos & lead surveys before demolition Date: _____
- ☐ Check historic status (demolition may need historic commission review) Date: _____
- ☐ Confirm whether it is legal nonconforming (grandfathered) Date: _____
- ☐ Get demolition permit requirements & cost estimate Date: _____

- [ ] Review existing tenants / leases / relocation rules — Date: _____

Step 6. Run the numbers

- [ ] Estimate land value AS-IS (current zoning) — Date: _____
- [ ] Estimate land value AFTER rezoning — Date: _____
- [ ] Budget entitlement costs, holding costs, and a risk cushion — Date: _____
- [ ] Get appraiser / land broker input on entitled-land comps — Date: _____
- [ ] Review tax structure with your CPA — Date: _____
- [ ] Go / No-Go decision before due diligence expires — Date: _____

Hire / consult: Appraiser, land broker, CPA.

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PHASE 4 — Entitlement (The Rezoning Process)

Step 7. Assemble the entitlement team

- [ ] Land use / zoning attorney (your most important hire) — Date: _____
- [ ] Civil engineer (concept site plan) — Date: _____
- [ ] Architect or land planner (site plan, density, renderings) — Date: _____
- [ ] Zoning consultant / expediter (optional) — Date: _____

Step 8. Pre-application meeting with planning staff

- [ ] Present concept and get staff feedback — Date: _____
- [ ] Confirm required documents, fees, and timeline — Date: _____
- [ ] Determine the path: straight rezoning, PUD / PD, comp plan amendment, conditional / special use permit, variances, or annexation — Date: _____

Step 9. Community outreach (start early!)

- [ ] Meet the district council member / county commissioner — Date: _____
- [ ] Meet neighborhood associations / HOAs — Date: _____
- [ ] Hold a community meeting (often required) — Date: _____
- [ ] Address concerns (traffic, density, buffers, height) and offer conditions / proffers — Date: _____

Step 10. Submit the application

- [ ] Application form & owner authorization — Date: _____
- [ ] Survey & legal description — Date: _____
- [ ] Concept plan & project narrative — Date: _____

- [ ] Traffic study / other required reports — Date: _____
- [ ] Application fees paid — Date: _____

Steps 11–14. Review, hearings & approval

- [ ] Staff review — respond to comments and revise — Date: _____
- [ ] Receive staff report & recommendation — Date: _____
- [ ] Planning Commission public hearing — recommendation received — Date: _____
- [ ] City Council / County Commission hearing — final vote (may be two readings) — Date: _____
- [ ] Record conditions / development agreement — Date: _____
- [ ] Appeal period expired (often 30 days) — Date: _____

Typical timeline / cost: 4–12 months for a straight rezoning; 12–24+ months with comp plan amendment or PUD. Roughly $25K–$250K+ in consultants, studies, and attorney fees.

NOTES

PHASE 5A — Exit: Sell Entitled Land to a Developer

Step 15. Package the deal

- [ ] Approved zoning ordinance — Date: _____
- [ ] Concept plan & yield (units / sq ft allowed) — Date: _____
- [ ] All reports (survey, environmental, geotech, traffic) — Date: _____
- [ ] Utility availability letters — Date: _____

Step 16. Market it

- [ ] Hire a land / commercial broker who knows local builders and developers — Date: _____
- [ ] Reach out directly to national / regional homebuilders and developers — Date: _____
- [ ] Collect and compare offers / LOIs — Date: _____

Step 17. Choose your structure & close

- [ ] Pick structure: close & resell, contract assignment, double close, or phased lot takedown — Date: _____
- [ ] Review tax treatment with CPA (dealer vs. capital gains, 1031 options) — Date: _____
- [ ] Sign purchase agreement with buyer — Date: _____
- [ ] Close / collect proceeds — Date: _____

Talk to: CPA / tax advisor before you close.

NOTES

PHASE 5B — Exit: Develop It Yourself

Step 18. Final design & permits

- ☐ Full construction drawings (architect & engineers) Date: _____
- ☐ Site plan / subdivision plat approval Date: _____
- ☐ Grading & stormwater permits Date: _____
- ☐ Building permits Date: _____
- ☐ Utility tap fees & impact fees paid Date: _____

Step 19. Financing

- ☐ Meet commercial lenders / banks / mortgage brokers Date: _____
- ☐ Line up equity (private investors / LPs) — hire securities attorney if raising money Date: _____
- ☐ Secure the capital stack: land loan, A&D loan, construction loan, permanent loan Date: _____

Step 20. Build

- ☐ Hire general contractor / site (horizontal) contractor Date: _____
- ☐ Hire construction manager / owner's rep Date: _____
- ☐ Pass inspections throughout construction Date: _____
- ☐ Certificate of occupancy / final acceptance Date: _____

Step 21. Stabilize & exit

- ☐ For-sale: listing agent or builder sales team Date: _____
- ☐ Rental: lease up with property manager Date: _____
- ☐ Refinance & hold OR sell via investment sales broker Date: _____

NOTES

YOUR TEAM — Contact Sheet

Type	Role	Name / Company	Phone / Email
TALK TO	City / County Planning & Zoning staff		
TALK TO	District Council Member / County Commissioner		
TALK TO	Utility providers (water, sewer, power)		
TALK TO	Public Works / Transportation Dept.		
TALK TO	Neighborhood associations / HOAs		
TALK TO	Local developers & homebuilders		
HIRE	Land use / zoning attorney		
HIRE	Real estate attorney		
HIRE	Civil engineer		
HIRE	Land surveyor		
HIRE	Environmental consultant		
HIRE	Geotechnical engineer		
HIRE	Traffic engineer		
HIRE	Architect / land planner		
HIRE	Appraiser		
HIRE	Land / commercial broker		
HIRE	CPA / tax advisor		
IF BUILD	Lender		
IF BUILD	General contractor		
IF BUILD	Construction manager / owner's rep		
IF BUILD	Property manager		

Key tips: (1) Comp plan alignment is everything. (2) Never close before zoning unless you're fine owning it as-is. (3) A local zoning attorney who appears before that council regularly is worth the premium. (4) Start small. (5) Entitle-and-sell is the lowest-capital path to profit.